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Provision of April 29, 2025
Register of provisions
n. 277 of April 29, 2025

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Dr. Claudio Filippi - Acting Secretary General;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016, concerning
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC, "General Data Protection Regulation" (hereinafter "Regulation");

HAVING REGARD to Legislative Decree No. 196 of June 30, 2003, containing
"Code regarding the protection of personal data,
containing provisions for the adaptation
of the national legal system to Regulation (EU)
2016/679 of the European Parliament and of the Council, of
April 27, 2016, concerning the protection of
natural persons with regard to the processing of personal data,
as well as the free movement of such data and repealing Directive 95/46/EC" (hereinafter
"Code");

HAVING REGARD to Regulation No. 1/2019 concerning
internal procedures with external relevance,
aimed at carrying out the tasks and
exercising the powers assigned to the Guarantor for the
protection of personal data, approved by
resolution No. 98 of 04/04/2019, published in
G.U. No. 106 of 08/05/2019 and on www.gpdp.it, doc. web
n. 9107633 (hereinafter "Guarantor Regulation No.
1/2019");

HAVING REGARD to the documentation on file;

HAVING REGARD to the observations made by the Acting Secretary General
pursuant to Article 15 of
Guarantor Regulation No. 1/2000 on the organization
and functioning of the office of the Guarantor for the
protection of personal data, on www.gpdp.it, doc.
web n. 1098801;

REPORTING Dr. Agostino Ghiglia;

PREMISED

1. The complaint

With a complaint submitted to the Authority, Mr. XX has
complained that he exercised, on XX, the right
of access to data, pursuant to Article 15 of the Regulation,
against Tirrenia Hospital S.r.l. with legal headquarters

in Mangone (CS), Via Provinciale s.n.c (hereinafter “healthcare facility”) and that he did not receive any response.

2. The investigative activity and the assessments of the Department. Notification of the violation referred to in Article 166, paragraph 5, of the Code. Defensive memorandum and hearing

Following this complaint, the Office, with a note of XX (prot. n. XX), invited the healthcare facility, data controller, to comply with the requests made by the complainant pursuant to Article 15 of Guarantor Regulation No. 1/2019.

On XX, the healthcare facility communicated to the Authority that it had “(...) complied with the request of the interested party and for appropriate knowledge (...) (it has transmitted) attached n.3 pdf files (pec sent to the interested party on XX at 15:49 -- acceptance receipt - delivery receipt)”.

The Authority, with a note of XX (prot. n. XX), in order to make definitive determinations regarding the procedure opened following the aforementioned complaint, invited the complainant to formulate any observations regarding the response provided by the data controller; the complainant, with a note of XX, confirmed having received a response from the data controller, without observations regarding it.

With a note of XX (prot. n. XX), based on the documentation on file and the statements provided, the Office, believing that the data controller did not provide - within the terms set forth in Article 12 of the Regulation - a response to the interested party, initiated, pursuant to Article 166, paragraph 5, of the Code, the procedure for the adoption of measures referred to in Article 58, paragraph 2, of the Regulation against the healthcare facility, data controller, inviting it to submit defensive writings or documents, or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code, as well as Article 18, paragraph 1, Law No. 689 of November 24, 1981). In particular, the Office has contested to the healthcare facility that it did not provide a response to the request for access to the personal data of the interested party, pursuant to Article 15 of the Regulation, within the terms set forth in Article 12 of the same Regulation. Specifically, in response to the request made by the interested party on XX, the healthcare facility provided a response only following the invitation to comply issued by the Authority with a note of XX.

In relation to what was contested with the cited act of initiation of the sanctioning procedure of XX (prot. n. XX), the data controller submitted a defensive memorandum on XX, in which it

highlighted that the request with which the interested party had exercised, on XX, the right of access to data pursuant to Article 15 of the Regulation "was not viewed in real time by the IT system (...) (resulting in) the impossibility of requesting an extension from the interested party. Only a subsequent reconstruction and recovery of IT data allowed for the recovery of the request. On XX, upon receiving the note from the Office, the request was promptly fulfilled. In light of the above, it is represented that the delay in responding is not attributable, certainly, to negligence of the facility but to an unpredictable event that generated the treatment and the documentation provided, it is concluded that the data controller did not respond to the request for access to the personal data of the interested party, as per Article 15 of the Regulation, within the timeframes established by Article 12 of the same Regulation, but only following the Authority's invitation to comply, communicated via note on XX (prot. n. XX).

The argument put forth by the data controller that "the delay in responding is certainly not attributable to negligence on the part of the structure but to an unpredictable event that generated the innocent impossibility of being able to comply within the legal terms and/or request an extension, on the part of the healthcare structure" or to a "computer problem (...) documentable through the technical intervention report n. XX, dated XX - fault onset at 15:24, with fault restoration at 16:41," cannot be accepted as there is no evidence to support the claim that the conduct of the data controller was innocent, meaning it could not have been avoided even with ordinary diligence. In light of established case law from the Supreme Court (Cass. n. 5426/2006, Cass. n. 7885/2011, Cass. n. 16320/2010, Cass. n. 19759/2015, Cass. n. 33441/2019, and Cass. n. 17822/2021), for the application of Article 3 of Law n. 689/1981, it is necessary that good faith or error is based on a positive element, external to the agent and capable of leading them to believe in the legality of their behavior (excusable error). This positive element must be one that cannot be avoided by the agent through the use of ordinary diligence. In the case at hand, if the operator employed by the healthcare structure, "responsible for receiving PEC," had exercised the ordinary diligence that this situation required, by downloading "(...) from Webmail all the PEC (among which was the request to exercise the rights of the interested party) after the restoration of the functionality of their computer workstation (...)," a response could have been provided to the request of the interested party within the timeframes set out in Article 12 of the Regulation.

Specifically, regarding the request made under Article 15 of the Regulation by the interested party on XX, the data controller did not provide the current complainant with a response within the timeframes established by Article 12 of the Regulation, but rather on XX (following the aforementioned invitation to comply with the requests of the complainant made by the Authority); this was due to reasons stemming from negligent conduct attributable to the data controller, in violation of Article 12 in relation to Article 15 of the Regulation.

The healthcare structure has nonetheless proceeded "to install a client system that operates directly on Webmail, thus avoiding the local download of PEC to prevent the recurrence of the incident. Furthermore, the healthcare structure has taken the opportunity to raise awareness among all staff, particularly regarding the operator involved in the matter at hand, on issues of security and compliance with the regulations on the protection of personal data, according to the directives previously issued."

4. Conclusions.

In light of the evaluations mentioned above, taking into account the statements made by the data controller and the documentation provided, it is concluded that the data controller did not fulfill their obligations under the applicable data protection regulations.

****Processing during the investigation - and****

considering that, unless the act constitutes a more serious offense, anyone who, in a proceeding

before the Guarantor, falsely declares or certifies news or circumstances or produces false acts or documents, is liable pursuant to Article 168 of the Code "Falsehood in declarations to the Guarantor and interruption of the execution of the tasks or the exercise of the powers of the Guarantor" - the elements provided by the data controller in the aforementioned defensive memorandum, although deserving of consideration, do not allow for overcoming the objections notified by the Office with the aforementioned initiation act of the procedure, nor do any of the cases provided for by Article 11 of the Guarantor Regulation No. 1/2019 apply.

Therefore, all that has been stated, based on the documents and declarations provided, in relation to the matter in question, the violation of Article 12 of the Regulation is established, in relation to Article 15 of the same Regulation, for failing to provide a response within the terms set forth in the aforementioned Article 12, to the request with which the interested party exercised the right of access to data pursuant to Article 15 of the Regulation.

The conditions for the adoption of further corrective measures pursuant to Article 58, paragraph 2, of the Regulation do not exist, considering that the conduct has exhausted its effects, as the data controller has provided a response to the interested party.

Finally, it is believed that the conditions of Article 17 of the Guarantor Regulation No. 1/2019 apply.

****5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i and 83 of the Regulation; Article 166, paragraph 7, of the Code). ****

The violation of Article 12, in relation to Article 15, is subject to the application of the administrative pecuniary sanction referred to in Article 83, paragraph 5, of the Regulation.

The Guarantor, pursuant to Article 58, paragraph 2, letter i) of the Regulation and Article 166 of the Code, has the power to impose an administrative pecuniary sanction provided for by Article 83 of the Regulation, through the adoption of an injunction order (Article 18 of Law No. 689 of November 24, 1981), in relation to the processing of personal data carried out by the healthcare structure, data controller, whose illegality has been established, in the terms outlined above.

The violation of Article 12, in relation to Article 15 of the Regulation is subject to the administrative pecuniary sanction referred to in Article 83, paragraph 5, of the Regulation, and the total amount of the sanction is to be quantified taking into account the maximum so-called "static" limit established by the Regulation, equal to the maximum limit of €20,000,000.

With reference to the elements listed in Article 83, paragraph 2, of the Regulation, for the purposes of applying the administrative pecuniary sanction and its quantification, considering that the sanction must be "effective, proportionate and dissuasive in each individual case" (Article 83, paragraph 1, of the Regulation), it is represented that, in the case at hand, the circumstances listed below have been taken into account.

In this case, the level of severity, based on the elements of Article 83, paragraph 2, letters a), b) and g) of the Regulation, is to be considered medium, given that the data controller did not respond to the request with which the interested party exercised the right of access pursuant to Article 15, within the terms set forth in Article 12 of the Regulation - but only subsequently to the invitation made by the Authority to comply with the requests of the complainant - for reasons determined by negligent conduct attributable to the data controller itself.

Finally, the additional elements provided for by Article 83, paragraph 2, of the Regulation have been considered, and in particular, that no relevant violations were committed by the data controller (Article 83, paragraph 2, letter e) of the Regulation), that the Guarantor became aware of the lack of response following the receipt of a complaint from the interested party (Article 83, paragraph 2, letter h) of the Regulation); that the data controller took steps to "warn the operator for not having downloaded all the certified emails (PEC) from Webmail (among which was the request to exercise the rights of the interested party) after the restoration of the functionality of her computer workstation; to install a client system that operates directly on Webmail thus avoiding the local download of the PEC to prevent the recurrence of the incident. Furthermore, the healthcare structure took the opportunity to raise awareness among all staff, particularly regarding the operator involved in the matter in question, on security and compliance with regulations on the protection of personal data, according to the directives

previously issued" (Article 83, paragraph 2, letters c) and k) of the Regulation).

In light of the aforementioned elements, evaluated in their entirety, for the conduct of the data controller in the matter in question, in violation of Article 12 in relation to Article 15 of the Regulation, it is deemed appropriate to determine the amount of the pecuniary sanction at €2,000.00 (two thousand/00).

Considering that the violation determined by the omissive conduct of the data controller concerns the exercise of rights guaranteed by the European legislator in Articles 15 to 22 of the Regulation and that the nature of the data subject to the access request referred to in Article 15 of the Regulation relates to health data, it is also believed that pursuant to Article 166, paragraph 7, of the Code and Article... 16, paragraph 1, of the Regulation of the Guarantor no. 1/2019, it is necessary to proceed with the publication of this section, containing the injunction order, on the Guarantor's website.

ALL OF THE ABOVE THE GUARANTOR

declares the illegality of the processing of personal data carried out by Tirrenia Hospital S.r.l., with registered office in Mangone (CS), Via Provinciale s.n.c - postal code 87050 - Tax Code no. 03638620785 for the violation of Article 12, in relation to Article 15 of the Regulation, as specified in the reasoning;

ORDERS

pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation, as well as Article 166 of the Code, the aforementioned data controller, to pay the sum of €2,000.00 (two thousand/00) as an administrative pecuniary sanction for the violation indicated in this provision;

ORDERS

therefore, the aforementioned data controller, to pay the sum of €2,000.00 (two thousand/00) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts in accordance with Article 27 of Law no. 689/198. It is noted that pursuant to Article 166, paragraph 8 of the Code, the possibility for the offender to settle the dispute by paying - according to the methods indicated in the annex - an amount equal to half of the imposed sanction within the term provided for the submission of the appeal as indicated below, remains unaffected.

DISPOSES

- pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Regulation of the Guarantor no. 1/2019, the publication of the injunction order on the Guarantor's website;

- pursuant to Article 154-bis, paragraph 3, of the Code and Article 37 of the Regulation of the Guarantor no. 1/2019, the publication of this provision on the website of the Authority;

- pursuant to Article 17 of the Regulation of the Guarantor no. 1/2019, the annotation of the violations and the measures adopted in accordance with Article 58, paragraph 2 of the Regulation, in the internal register of the Authority

provided for by Article 57, paragraph 1, letter u) of the Regulation.

Pursuant to Article 78 of the Regulation, Articles 152 of the Code and 10 of Legislative Decree no. 150/2011, an appeal against this provision may be filed with the ordinary judicial authority, with a petition submitted to the ordinary court of the place identified in the same Article 10, within the term of thirty days from the date of communication of the provision itself, or sixty days if the appellant resides abroad.

Rome, April 29, 2025

THE PRESIDENT

Stanzione

THE RAPPORTEUR

Ghiglia

THE ACTING SECRETARY GENERAL

Filippi